COMMERCIAL AGREEMENT - RECORD 005

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-005

1. Recitals and defined terms

This Service Level Schedule and Credit Ladder is made between Helioscope Robotics, Inc. as Provider and Evergreen Warehousing Co. as Customer, a cold-chain warehousing business organised in Washington, contracting through Evergreen Warehousing Co.. Evergreen and the Provider have agreed that terms defined in the recitals and in Schedule 2 carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Save as Schedule 5 otherwise provides, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. By way of qualification, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Washington is where Evergreen runs cold-chain warehousing operations across 5 sites, and the Service Level Schedule and Credit Ladder follows that footprint. Evergreen has taken the point up once since signature; the correspondence is filed against Article 15 (Limitation of Liability) and did not result in an amendment.

Nothing in Exhibit D entitles Evergreen to assume that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Materially, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Washington is where Evergreen runs cold-chain warehousing operations across 5 sites, and the Service Level Schedule and Credit Ladder follows that footprint. For a customer of Evergreen's size the clause is unremarkable, but Article 13 (Licences) is drafted more tightly here than in the Provider's standard form.

Evergreen retains the right, notwithstanding Article 4 (Orders and Quantities), to require that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Operationally, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. For Evergreen, a cold-chain warehousing operator running 5 sites out of Washington, the point matters because the Service Level Schedule and Credit Ladder is administered site by site. For a customer of Evergreen's size the clause is unremarkable, but Article 9 (Customer Obligations) is drafted more tightly here than in the Provider's standard form.

As between Evergreen and the Provider, confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. On this point, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. For Evergreen, a cold-chain warehousing operator running 5 sites out of Washington, the point matters because the Service Level Schedule and Credit Ladder is administered site by site. The Evergreen file records the position as at the last amendment, and Article 15 (Limitation of Liability) is the reference a reviewer should cite when raising it.

Evergreen service level schedule - Exhibit D - Component Prices, Lead Times and Sourcing

Evergreen price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
EVE-P0001	part 8317-W	gearbox	$1,922	15	400	qualification in progress	last-time-buy notice 12 months
EVE-P0002	part 3822-O	gearbox	$207	9	50	single source	EOL notice 6 months
EVE-P0003	part 7000-K	optical sensor	$122	8	300	qualification in progress	last-time-buy notice 12 months
EVE-P0004	part 8357-L	castor assembly	$1,518	7	200	single source	no EOL commitment
EVE-P0005	part 7209-E	harness	$409	5	600	single source	no EOL commitment
EVE-P0006	part 4049-A	harness	$2,251	17	100	single source	no EOL commitment
EVE-P0007	part 6319-S	encoder	$2,296	16	400	dual sourced	EOL notice 6

Evergreen price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
EVE-P0008	part 4828-J	battery module	$1,546	13	450	dual sourced	no EOL commitment
EVE-P0009	part 6240-H	harness	$405	5	350	dual sourced	last-time-buy notice 12 months
EVE-P0010	part 1516-C	battery module	$635	14	450	qualification in progress	EOL notice 6 months
EVE-P0011	part 9062-O	controller board	$1,189	5	300	dual sourced	last-time-buy notice 12 months
EVE-P0012	part 2173-O	drive unit	$1,096	18	300	dual sourced	EOL notice 6 months
EVE-P0013	part 2762-X	castor assembly	$1,404	15	250	dual sourced	last-time-buy notice 12 months
EVE-P0014	part 3200-E	battery module	$2,215	18	300	qualification in progress	last-time-buy notice 12 months
EVE-P0015	part 9340-G	drive unit	$1,128	19	150	dual sourced	last-time-buy notice 12 months
EVE-P0016	part 3469-F	gearbox	$1,191	13	250	dual sourced	last-time-buy notice 12 months
EVE-P0017	part 9542-G	encoder	$2,410	4	600	single source	no EOL commitment
EVE-P0018	part 3538-S	drive unit	$956	17	100	qualification in progress	no EOL commitment
EVE-P0019	part 3295-J	gearbox	$1,697	14	350	single source	no EOL commitment
EVE-P0020	part 9704-W	gearbox	$255	13	250	single source	last-time-buy notice 12 months
EVE-P0021	part 8251-T	encoder	$764	6	100	single source	EOL notice 6 months
EVE-P0022	part 6064-C	encoder	$392	20	100	qualification in progress	EOL notice 6 months
EVE-P0023	part 3795-L	castor assembly	$1,053	7	350	dual sourced	EOL notice 6 months
EVE-P0024	part 1467-N	controller board	$52	18	350	dual sourced	EOL notice 6 months
EVE-P0025	part 5472-V	castor assembly	$408	7	450	single source	EOL notice 6 months
EVE-P0026	part 4570-Q	controller board	$1,249	9	350	qualification in progress	EOL notice 6 months
EVE-P0027	part 7634-R	gearbox	$526	20	550	single source	no EOL commitment
EVE-P0028	part 4366-U	drive unit	$1,299	23	150	qualification in progress	EOL notice 6 months
EVE-P0029	part 6286-P	encoder	$2,005	20	400	qualification in progress	no EOL commitment
EVE-P0030	part 1327-O	battery module	$973	6	50	single source	no EOL commitment
EVE-P0031	part 8556-G	optical sensor	$1,440	25	150	single source	no EOL commitment
EVE-P0032	part 7543-D	encoder	$2,395	18	300	single source	EOL notice 6 months
EVE-P0033	part 1022-W	castor assembly	$737	10	100	single source	last-time-buy notice 12 months
EVE-P0034	part 8534-T	controller board	$1,374	4	100	qualification in progress	EOL notice 6 months
EVE-P0035	part 1896-P	controller board	$2,024	4	400	qualification in progress	EOL notice 6 months
EVE-P0036	part 3066-D	controller board	$1,448	5	50	dual sourced	last-time-buy notice 12 months
EVE-P0037	part 3396-M	drive unit	$885	23	500	single source	no EOL

Evergreen price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							commitment
EVE-P0038	part 5587-N	drive unit	$240	4	450	dual sourced	no EOL commitment
EVE-P0039	part 9742-L	battery module	$1,871	12	50	dual sourced	no EOL commitment
EVE-P0040	part 4645-C	gearbox	$712	11	400	qualification in progress	EOL notice 6 months
EVE-P0041	part 7969-R	encoder	$850	14	250	dual sourced	last-time-buy notice 12 months
EVE-P0042	part 8051-N	harness	$469	8	350	single source	no EOL commitment
EVE-P0043	part 1876-A	encoder	$1,662	13	150	qualification in progress	EOL notice 6 months
EVE-P0044	part 5216-Z	encoder	$1,597	19	250	single source	no EOL commitment
EVE-P0045	part 1189-X	drive unit	$362	18	100	dual sourced	no EOL commitment
EVE-P0046	part 1285-Z	battery module	$802	13	300	qualification in progress	no EOL commitment

1. Recitals and defined terms - part 2 of 2

Below, the 1. Recitals and defined terms continues; nothing separates this part from the last except the page on which it happens to fall. The parts are to be read together.

Definitions given once for the 1. Recitals and defined terms are relied on again rather than restated, the compilation basis being identical. No row is omitted at the join.

Evergreen service level schedule - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)

Evergreen price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
EVE-P0047	part 5844-R	controller board	$148	5	200	qualification in progress	last-time-buy notice 12 months
EVE-P0048	part 8026-O	battery module	$554	17	250	single source	no EOL commitment
EVE-P0049	part 4124-E	battery module	$761	13	200	single source	no EOL commitment
EVE-P0050	part 4452-N	gearbox	$1,276	25	450	dual sourced	EOL notice 6 months
EVE-P0051	part 2147-I	optical sensor	$1,996	8	200	dual sourced	EOL notice 6 months
EVE-P0052	part 1378-H	controller board	$2,115	23	600	qualification in progress	EOL notice 6 months
EVE-P0053	part 1908-P	castor assembly	$1,987	16	400	single source	last-time-buy notice 12 months
EVE-P0054	part 8652-X	encoder	$1,151	10	450	dual sourced	EOL notice 6 months
EVE-P0055	part 2687-M	drive unit	$926	9	200	single source	no EOL commitment
EVE-P0056	part 8792-M	controller board	$216	14	300	dual sourced	last-time-buy notice 12 months
EVE-P0057	part 6861-G	drive unit	$1,955	7	300	dual sourced	last-time-buy notice 12 months
EVE-P0058	part 7322-U	encoder	$781	25	100	qualification in progress	EOL notice 6 months
EVE-P0059	part 6712-I	battery module	$1,529	16	550	qualification in progress	no EOL commitment
EVE-P0060	part 2981-T	harness	$507	18	150	single source	EOL notice 6 months
EVE-P0061	part 2265-R	drive unit	$60	21	500	single source	no EOL commitment
EVE-P0062	part 7873-L	encoder	$2,253	22	550	single source	last-time-buy notice 12

Evergreen price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							months
EVE-P0063	part 1824-S	encoder	$925	17	500	qualification in progress	last-time-buy notice 12 months
EVE-P0064	part 1139-K	battery module	$1,424	15	100	qualification in progress	no EOL commitment
EVE-P0065	part 5963-B	encoder	$1,748	23	250	qualification in progress	EOL notice 6 months
EVE-P0066	part 3821-J	encoder	$1,122	15	100	qualification in progress	no EOL commitment
EVE-P0067	part 9194-C	optical sensor	$2,271	15	300	dual sourced	no EOL commitment
EVE-P0068	part 7513-W	castor assembly	$1,648	5	250	qualification in progress	EOL notice 6 months
EVE-P0069	part 1806-J	battery module	$1,565	5	150	qualification in progress	last-time-buy notice 12 months
EVE-P0070	part 7935-P	battery module	$2,381	14	500	dual sourced	last-time-buy notice 12 months
EVE-P0071	part 7697-H	optical sensor	$2,356	17	300	dual sourced	last-time-buy notice 12 months
EVE-P0072	part 3897-N	optical sensor	$1,234	21	50	qualification in progress	no EOL commitment
EVE-P0073	part 4350-M	encoder	$2,191	14	550	dual sourced	no EOL commitment
EVE-P0074	part 8678-X	battery module	$1,653	6	400	qualification in progress	no EOL commitment
EVE-P0075	part 6832-P	optical sensor	$1,525	24	400	qualification in progress	no EOL commitment
EVE-P0076	part 1856-W	drive unit	$1,570	17	150	single source	EOL notice 6 months
EVE-P0077	part 3310-N	optical sensor	$404	17	400	dual sourced	EOL notice 6 months
EVE-P0078	part 5214-V	optical sensor	$1,964	16	250	single source	EOL notice 6 months
EVE-P0079	part 4786-N	optical sensor	$2,272	18	600	qualification in progress	no EOL commitment
EVE-P0080	part 9860-T	encoder	$677	21	50	dual sourced	last-time-buy notice 12 months
EVE-P0081	part 1271-F	controller board	$601	9	450	qualification in progress	last-time-buy notice 12 months
EVE-P0082	part 2559-D	encoder	$1,966	25	550	single source	last-time-buy notice 12 months
EVE-P0083	part 5849-L	castor assembly	$957	25	400	dual sourced	no EOL commitment
EVE-P0084	part 9605-Y	controller board	$1,100	18	350	dual sourced	last-time-buy notice 12 months
EVE-P0085	part 6446-V	castor assembly	$146	19	400	dual sourced	EOL notice 6 months
EVE-P0086	part 2506-U	castor assembly	$1,000	11	500	qualification in progress	last-time-buy notice 12 months
EVE-P0087	part 6224-Y	castor assembly	$1,063	8	300	dual sourced	last-time-buy notice 12 months
EVE-P0088	part 4123-A	controller board	$581	21	450	single source	last-time-buy notice 12 months
EVE-P0089	part 9604-R	encoder	$1,307	17	500	dual sourced	no EOL commitment
EVE-P0090	part 5901-J	optical sensor	$835	23	300	dual sourced	EOL notice 6 months
EVE-P0091	part 9646-B	gearbox	$1,226	24	150	single source	no EOL

Evergreen price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							commitment
EVE-P0092	part 2170-H	drive unit	$462	4	600	qualification in progress	EOL notice 6 months

2. Scope of supply and orders

As between Evergreen and the Provider, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Operationally, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Operating 5 sites, Evergreen applies the Service Level Schedule and Credit Ladder at the point of delivery, as cold-chain warehousing practice requires. Evergreen has taken the point up once since signature; the correspondence is filed against Article 21 (Governing Law and Disputes) and did not result in an amendment.

On the terms of Exhibit B, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On the mechanics, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Washington is where Evergreen runs cold-chain warehousing operations across 5 sites, and the Service Level Schedule and Credit Ladder follows that footprint. Nothing in the Evergreen negotiation history qualifies Article 2 (Definitions), and a reviewer should not read the pre-signature drafts as doing so.

The Provider warrants to Evergreen that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As to enforcement, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Washington is where Evergreen runs cold-chain warehousing operations across 5 sites, and the Service Level Schedule and Credit Ladder follows that footprint. For a customer of Evergreen's size the clause is unremarkable, but Article 6 (Fees and Payment) is drafted more tightly here than in the Provider's standard form.

As between Evergreen and the Provider, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As it bites, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Evergreen runs 5 sites from Washington in cold-chain warehousing, so the Service Level Schedule and Credit Ladder is administered locally and this clause is applied per site. Where Evergreen has raised a query the Provider has answered by reference to Article 6 (Fees and Payment), and the exchange is on the contract file.

3. Delivery, title and risk

On the terms of Exhibit A, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As drafted, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Operating 5 sites, Evergreen applies the Service Level Schedule and Credit Ladder at the point of delivery, as cold-chain warehousing practice requires. Where Evergreen has raised a query the Provider has answered by reference to Article 5 (Delivery and Title), and the exchange is on the contract file.

Evergreen and the Provider agree that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the negotiated text, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Evergreen runs 5 sites from Washington in cold-chain warehousing, so the Service Level Schedule and Credit Ladder is administered locally and this clause is applied per site. For a customer of Evergreen's size the clause is unremarkable, but Article 17 (Transition Assistance) is drafted more tightly here than in the Provider's standard form.

Evergreen and the Provider agree that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. As agreed, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. The Service Level Schedule and Credit Ladder reaches each of Evergreen's 5 sites separately, which is how a cold-chain

warehousing operator in Washington administers it. The obligation as it applies to Evergreen was tightened at signature, and Article 8 (Acceptance) carries the negotiated wording rather than the standard wording.

Read with Schedule 3, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. As drafted, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Evergreen runs 5 sites from Washington in cold-chain warehousing, so the Service Level Schedule and Credit Ladder is administered locally and this clause is applied per site. Notices under Article 2 (Definitions) go to the contracting entity named in the recital and not to any Evergreen affiliate that may operate a site.

Evergreen service level schedule - Schedule 5 - Notices, Periods and Addressees

Evergreen notice type	Subject	Period	Addressee	Method	Deemed given
EVE-N001	breach	20 days	Contracts Manager	courier and email	on receipt
EVE-N002	breach	55 days	designated account executive	courier and email	on the second business day after despatch
EVE-N003	force majeure	20 days	designated account executive	courier and email	on the second business day after despatch
EVE-N004	breach	25 days	General Counsel	portal notice	on the second business day after despatch
EVE-N005	assignment request	10 days	Chief Operating Officer	email with acknowledgement	on receipt
EVE-N006	breach	15 days	designated account executive	courier and email	on the second business day after despatch
EVE-N007	assignment request	50 days	Contracts Manager	courier and email	on despatch
EVE-N008	assignment request	40 days	Chief Operating Officer	courier only	on the second business day after despatch
EVE-N009	change of control	25 days	designated account executive	courier only	on receipt
EVE-N010	change of control	65 days	Chief Operating Officer	email with acknowledgement	on receipt
EVE-N011	renewal election	25 days	Chief Operating Officer	courier and email	on receipt
EVE-N012	change of control	30 days	designated account executive	portal notice	on despatch
EVE-N013	price adjustment	80 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
EVE-N014	renewal election	40 days	designated account executive	courier and email	on despatch
EVE-N015	breach	10 days	Contracts Manager	courier and email	on receipt
EVE-N016	service credit claim	45 days	Contracts Manager	portal notice	on receipt
EVE-N017	service credit claim	40 days	Contracts Manager	portal notice	on despatch
EVE-N018	termination for cause	80 days	Chief Operating Officer	courier and email	on despatch
EVE-N019	change of control	5 days	General Counsel	courier only	on despatch
EVE-N020	renewal election	40 days	Chief Operating Officer	courier only	on receipt
EVE-N021	breach	80 days	designated account executive	courier only	on despatch
EVE-N022	non-renewal	80 days	General Counsel	courier only	on despatch
EVE-N023	renewal election	30 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
EVE-N024	non-renewal	90 days	General Counsel	portal notice	on the second business day after despatch
EVE-N025	service credit claim	50 days	General Counsel	portal notice	on receipt
EVE-N026	price adjustment	55 days	designated account executive	courier and email	on the second business day after despatch
EVE-N027	force majeure	10 days	Chief Operating Officer	courier only	on despatch

Evergreen notice type	Subject	Period	Addressee	Method	Deemed given
EVE-N028	price adjustment	45 days	designated account executive	email with acknowledgement	on the second business day after despatch
EVE-N029	termination for cause	60 days	Contracts Manager	portal notice	on the second business day after despatch
EVE-N030	non-renewal	30 days	Contracts Manager	portal notice	on despatch
EVE-N031	change of control	35 days	General Counsel	email with acknowledgement	on receipt
EVE-N032	force majeure	40 days	designated account executive	email with acknowledgement	on the second business day after despatch
EVE-N033	change of control	60 days	General Counsel	portal notice	on the second business day after despatch
EVE-N034	termination for cause	10 days	Chief Operating Officer	courier and email	on receipt
EVE-N035	non-renewal	20 days	Contracts Manager	courier and email	on the second business day after despatch
EVE-N036	non-renewal	60 days	General Counsel	courier only	on despatch
EVE-N037	breach	10 days	General Counsel	portal notice	on the second business day after despatch
EVE-N038	termination for cause	45 days	Chief Operating Officer	courier only	on the second business day after despatch
EVE-N039	breach	40 days	designated account executive	email with acknowledgement	on the second business day after despatch
EVE-N040	non-renewal	50 days	Chief Operating Officer	courier and email	on the second business day after despatch
EVE-N041	service credit claim	20 days	General Counsel	courier and email	on the second business day after despatch
EVE-N042	breach	60 days	General Counsel	courier and email	on despatch
EVE-N043	price adjustment	5 days	designated account executive	courier and email	on receipt
EVE-N044	service credit claim	55 days	Chief Operating Officer	email with acknowledgement	on despatch
EVE-N045	price adjustment	40 days	Chief Operating Officer	email with acknowledgement	on despatch
EVE-N046	force majeure	80 days	Chief Operating Officer	email with acknowledgement	on receipt
EVE-N047	breach	40 days	designated account executive	courier and email	on the second business day after despatch
EVE-N048	termination for cause	25 days	General Counsel	portal notice	on receipt
EVE-N049	force majeure	50 days	designated account executive	portal notice	on the second business day after despatch
EVE-N050	force majeure	15 days	Contracts Manager	courier only	on the second business day after despatch
EVE-N051	renewal election	45 days	Chief Operating Officer	portal notice	on receipt
EVE-N052	price adjustment	20 days	Chief Operating Officer	portal notice	on receipt
EVE-N053	assignment request	25 days	Chief Operating Officer	email with acknowledgement	on despatch
EVE-N054	termination for cause	85 days	Contracts Manager	courier only	on despatch
EVE-N055	termination for cause	30 days	General Counsel	portal notice	on the second business day after despatch
EVE-N056	non-renewal	65 days	Chief Operating Officer	courier and email	on the second business day after despatch
EVE-N057	force majeure	25 days	General Counsel	email with	on the second

Evergreen notice type	Subject	Period	Addressee	Method	Deemed given
				acknowledgement	business day after despatch
EVE-N058	assignment request	65 days	Contracts Manager	courier only	on the second business day after despatch
EVE-N059	assignment request	30 days	designated account executive	email with acknowledgement	on despatch
EVE-N060	assignment request	80 days	General Counsel	portal notice	on receipt
EVE-N061	force majeure	70 days	General Counsel	courier and email	on the second business day after despatch
EVE-N062	change of control	5 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
EVE-N063	non-renewal	25 days	General Counsel	courier and email	on despatch
EVE-N064	service credit claim	10 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
EVE-N065	force majeure	90 days	General Counsel	courier only	on the second business day after despatch
EVE-N066	change of control	5 days	Contracts Manager	email with acknowledgement	on receipt
EVE-N067	termination for cause	45 days	Chief Operating Officer	portal notice	on despatch
EVE-N068	price adjustment	45 days	Chief Operating Officer	courier only	on the second business day after despatch
EVE-N069	termination for cause	35 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
EVE-N070	termination for cause	90 days	Chief Operating Officer	courier only	on the second business day after despatch
EVE-N071	breach	35 days	General Counsel	portal notice	on the second business day after despatch
EVE-N072	breach	85 days	Chief Operating Officer	courier only	on despatch
EVE-N073	service credit claim	65 days	designated account executive	portal notice	on receipt
EVE-N074	force majeure	25 days	General Counsel	email with acknowledgement	on the second business day after despatch
EVE-N075	breach	50 days	designated account executive	email with acknowledgement	on despatch
EVE-N076	service credit claim	65 days	designated account executive	courier and email	on receipt
EVE-N077	service credit claim	30 days	designated account executive	courier and email	on receipt
EVE-N078	renewal election	35 days	designated account executive	courier and email	on the second business day after despatch

4. Fees, invoicing and escalation

Evergreen bears the risk that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. As between them, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Washington is where Evergreen runs cold-chain warehousing operations across 5 sites, and the Service Level Schedule and Credit Ladder follows that footprint. Evergreen has taken the point up once since signature; the correspondence is filed against Article 8 (Acceptance) and did not result in an amendment.

On a proper construction of Exhibit D, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Deliberately so: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article.

Washington is where Evergreen runs cold-chain warehousing operations across 5 sites, and the Service Level Schedule and Credit Ladder follows that footprint. Because Evergreen operates in cold-chain warehousing, the practical burden of this clause falls on its Washington operation, and Article 12 (Intellectual Property) governs how it is measured.

Evergreen and the Provider agree that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Negotiated position: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. This bites at Evergreen's 5 sites, since a cold-chain warehousing operator administers the Service Level Schedule and Credit Ladder where the units work. Administration of this obligation for Evergreen sits with the account team rather than with central contracts, and Article 4 (Orders and Quantities) is where it is evidenced.

The Provider warrants to Evergreen that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Deliberately so: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Washington is where Evergreen runs cold-chain warehousing operations across 5 sites, and the Service Level Schedule and Credit Ladder follows that footprint. Nothing in the Evergreen negotiation history qualifies Article 6 (Fees and Payment), and a reviewer should not read the pre-signature drafts as doing so.

5. Service levels and credits

The parties have recorded in Schedule 3 that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Strictly, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. This bites at Evergreen's 5 sites, since a cold-chain warehousing operator administers the Service Level Schedule and Credit Ladder where the units work. The Evergreen file records the position as at the last amendment, and Article 6 (Fees and Payment) is the reference a reviewer should cite when raising it.

Except as Article 10 (Change Control) permits, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Intended effect: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. In cold-chain warehousing the burden of this sits with operations, and Evergreen discharges it across 5 sites under the Service Level Schedule and Credit Ladder. Because Evergreen operates in cold-chain warehousing, the practical burden of this clause falls on its Washington operation, and Article 13 (Licences) governs how it is measured.

The Provider warrants to Evergreen that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. As to enforcement, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Because Evergreen is a Washington cold-chain warehousing business with 5 sites, the Service Level Schedule and Credit Ladder devolves this to the site manager. Administration of this obligation for Evergreen sits with the account team rather than with central contracts, and Article 2 (Definitions) is where it is evidenced.

On a proper construction of Schedule 3, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Practically, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. 5 sites in Washington means Evergreen applies the Service Level Schedule and Credit Ladder through its regional operations team rather than through head office. Evergreen has taken the point up once since signature; the correspondence is filed against Article 15 (Limitation of Liability) and did not result in an amendment.

6. Acceptance and change control

Evergreen Warehousing Co. undertakes that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. As drafted, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Evergreen runs 5 sites from Washington in cold-chain warehousing, so the Service Level Schedule and Credit Ladder is administered locally and this clause is applied per site. Evergreen has taken the point

up once since signature; the correspondence is filed against Article 5 (Delivery and Title) and did not result in an amendment.

Evergreen retains the right, notwithstanding Article 20 (Notices), to require that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Materially, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. For Evergreen, a cold-chain warehousing operator running 5 sites out of Washington, the point matters because the Service Level Schedule and Credit Ladder is administered site by site. Administration of this obligation for Evergreen sits with the account team rather than with central contracts, and Article 16 (Term and Termination) is where it is evidenced.

Save as Exhibit A otherwise provides, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Materially, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Evergreen runs 5 sites from Washington in cold-chain warehousing, so the Service Level Schedule and Credit Ladder is administered locally and this clause is applied per site. Where Evergreen has raised a query the Provider has answered by reference to Article 11 (Data and Telemetry), and the exchange is on the contract file.

Article 4 (Orders and Quantities) of the Service Level Schedule and Credit Ladder is to be construed so that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Tighter here than standard: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. 5 sites in Washington means Evergreen applies the Service Level Schedule and Credit Ladder through its regional operations team rather than through head office. Because Evergreen operates in cold-chain warehousing, the practical burden of this clause falls on its Washington operation, and Article 15 (Limitation of Liability) governs how it is measured.

Evergreen service level schedule - Exhibit A - Fee Schedule and Annual Escalator

Evergreen fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
EVE-F001	tote carrier	25	$3,918	$97,950	4.9%	on renewal only
EVE-F002	lift attachment	15	$2,544	$38,160	4.5%	not escalated
EVE-F003	fleet controller	29	$2,507	$72,703	3.9%	annually each January
EVE-F004	gateway appliance	19	$5,602	$106,438	2.0%	on renewal only
EVE-F005	lift attachment	25	$7,041	$176,025	2.2%	annually each January
EVE-F006	lift attachment	16	$4,526	$72,416	5.4%	on renewal only
EVE-F007	AMR-400 heavy unit	12	$6,201	$74,412	4.3%	on renewal only
EVE-F008	AMR-400 heavy unit	7	$1,667	$11,669	4.0%	not escalated
EVE-F009	gateway appliance	29	$5,422	$157,238	4.8%	not escalated
EVE-F010	AMR-200 mobile unit	25	$7,827	$195,675	3.5%	not escalated
EVE-F011	safety scanner kit	23	$6,591	$151,593	3.1%	on renewal only
EVE-F012	AMR-200 mobile unit	39	$2,610	$101,790	3.2%	annually on the anniversary
EVE-F013	gateway appliance	24	$8,022	$192,528	5.8%	annually each January
EVE-F014	safety scanner kit	28	$9,600	$268,800	3.7%	annually on the anniversary
EVE-F015	AMR-200 mobile unit	7	$7,215	$50,505	4.7%	annually each January
EVE-F016	safety scanner kit	35	$4,236	$148,260	4.2%	annually each January
EVE-F017	gateway appliance	12	$8,764	$105,168	2.9%	annually on the anniversary
EVE-F018	safety scanner kit	8	$6,521	$52,168	3.9%	not escalated
EVE-F019	AMR-200 mobile unit	24	$6,911	$165,864	3.5%	on renewal only
EVE-F020	lift attachment	9	$8,123	$73,107	5.6%	annually each January

Evergreen fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
EVE-F021	charge dock	27	$5,616	$151,632	5.0%	annually each January
EVE-F022	lift attachment	19	$5,205	$98,895	3.9%	on renewal only
EVE-F023	AMR-400 heavy unit	26	$6,587	$171,262	5.6%	not escalated
EVE-F024	safety scanner kit	2	$8,531	$17,062	3.1%	on renewal only
EVE-F025	AMR-200 mobile unit	36	$1,171	$42,156	5.3%	annually on the anniversary
EVE-F026	AMR-200 mobile unit	41	$9,082	$372,362	2.7%	not escalated
EVE-F027	charge dock	32	$8,468	$270,976	5.4%	annually each January
EVE-F028	safety scanner kit	11	$5,157	$56,727	3.9%	annually each January
EVE-F029	tote carrier	2	$3,000	$6,000	3.9%	on renewal only
EVE-F030	safety scanner kit	21	$4,970	$104,370	4.6%	on renewal only
EVE-F031	safety scanner kit	29	$7,072	$205,088	4.8%	not escalated
EVE-F032	AMR-400 heavy unit	2	$1,851	$3,702	3.4%	not escalated
EVE-F033	safety scanner kit	20	$2,176	$43,520	5.6%	annually on the anniversary
EVE-F034	charge dock	7	$6,246	$43,722	3.4%	on renewal only
EVE-F035	fleet controller	15	$9,796	$146,940	5.8%	annually each January
EVE-F036	AMR-200 mobile unit	31	$9,095	$281,945	3.7%	on renewal only
EVE-F037	safety scanner kit	9	$8,841	$79,569	2.5%	annually on the anniversary
EVE-F038	AMR-200 mobile unit	32	$1,711	$54,752	2.0%	on renewal only
EVE-F039	fleet controller	17	$7,905	$134,385	5.8%	annually each January
EVE-F040	AMR-200 mobile unit	30	$8,326	$249,780	5.1%	annually on the anniversary
EVE-F041	AMR-400 heavy unit	24	$5,507	$132,168	5.3%	annually on the anniversary
EVE-F042	AMR-200 mobile unit	24	$5,103	$122,472	3.2%	not escalated
EVE-F043	tote carrier	23	$4,965	$114,195	2.5%	annually each January
EVE-F044	AMR-400 heavy unit	37	$7,416	$274,392	5.8%	not escalated
EVE-F045	AMR-400 heavy unit	34	$3,258	$110,772	2.6%	annually on the anniversary
EVE-F046	AMR-400 heavy unit	12	$4,936	$59,232	4.4%	on renewal only
EVE-F047	gateway appliance	28	$9,083	$254,324	3.2%	on renewal only
EVE-F048	AMR-200 mobile unit	5	$6,977	$34,885	4.8%	on renewal only
EVE-F049	AMR-200 mobile unit	24	$2,355	$56,520	5.9%	annually on the anniversary
EVE-F050	AMR-400 heavy unit	8	$3,020	$24,160	5.9%	annually on the anniversary
EVE-F051	gateway appliance	30	$5,393	$161,790	3.0%	annually on the anniversary
EVE-F052	AMR-400 heavy unit	21	$6,167	$129,507	3.3%	annually on the anniversary
EVE-F053	fleet controller	32	$9,695	$310,240	3.4%	annually each January
EVE-F054	charge dock	37	$1,262	$46,694	5.2%	not escalated
EVE-F055	safety scanner kit	22	$8,392	$184,624	5.1%	annually on the anniversary
EVE-F056	charge dock	6	$7,957	$47,742	3.0%	annually on the anniversary
EVE-F057	fleet controller	15	$5,990	$89,850	4.5%	on renewal only
EVE-F058	AMR-400 heavy unit	13	$4,067	$52,871	4.3%	on renewal only
EVE-F059	gateway	15	$4,418	$66,270	2.2%	annually on the

Evergreen fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
	appliance					anniversary
EVE-F060	AMR-400 heavy unit	5	$2,519	$12,595	5.4%	annually each January
EVE-F061	lift attachment	31	$2,290	$70,990	5.5%	annually on the anniversary
EVE-F062	AMR-200 mobile unit	29	$1,536	$44,544	2.5%	on renewal only
EVE-F063	AMR-200 mobile unit	21	$9,643	$202,503	4.6%	annually on the anniversary
EVE-F064	tote carrier	38	$9,070	$344,660	3.1%	annually on the anniversary
EVE-F065	charge dock	28	$4,502	$126,056	3.8%	on renewal only
EVE-F066	AMR-400 heavy unit	6	$2,001	$12,006	2.5%	not escalated
EVE-F067	charge dock	15	$8,715	$130,725	2.8%	annually on the anniversary
EVE-F068	gateway appliance	27	$4,297	$116,019	2.5%	on renewal only
EVE-F069	safety scanner kit	25	$5,903	$147,575	5.6%	not escalated
EVE-F070	fleet controller	39	$7,777	$303,303	3.7%	annually each January
EVE-F071	safety scanner kit	29	$3,713	$107,677	2.1%	annually on the anniversary
EVE-F072	AMR-400 heavy unit	27	$1,268	$34,236	4.4%	annually each January
EVE-F073	safety scanner kit	4	$9,013	$36,052	3.4%	on renewal only
EVE-F074	charge dock	37	$5,028	$186,036	5.5%	not escalated
EVE-F075	tote carrier	35	$2,812	$98,420	3.8%	not escalated
EVE-F076	gateway appliance	35	$8,535	$298,725	4.1%	annually on the anniversary
EVE-F077	AMR-200 mobile unit	6	$9,761	$58,566	2.1%	annually on the anniversary
EVE-F078	gateway appliance	26	$3,466	$90,116	4.6%	not escalated
EVE-F079	AMR-200 mobile unit	15	$8,435	$126,525	3.4%	annually on the anniversary
EVE-F080	AMR-200 mobile unit	25	$9,312	$232,800	2.5%	not escalated
EVE-F081	charge dock	41	$8,937	$366,417	3.8%	on renewal only
EVE-F082	AMR-400 heavy unit	20	$7,492	$149,840	3.6%	annually each January
EVE-F083	safety scanner kit	18	$2,627	$47,286	4.1%	annually each January
EVE-F084	charge dock	33	$6,899	$227,667	4.7%	on renewal only
EVE-F085	lift attachment	14	$6,209	$86,926	3.1%	annually on the anniversary
EVE-F086	tote carrier	32	$4,425	$141,600	5.4%	annually on the anniversary
EVE-F087	AMR-200 mobile unit	20	$5,453	$109,060	4.7%	not escalated
EVE-F088	gateway appliance	26	$4,921	$127,946	4.7%	not escalated

7. Data, intellectual property and licences

Evergreen bears the risk that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. In effect, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Evergreen treats the obligation as a site-level matter across its 5 sites in Washington, consistent with the Service Level Schedule and Credit Ladder. Notices under Article 8 (Acceptance) go to the contracting entity named in the recital and not to any Evergreen affiliate that may operate a site.

Evergreen Warehousing Co. has notified the Provider that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Textually, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Site count matters here: Evergreen has 5 sites, and the Service Level Schedule and Credit Ladder treats each as a separate delivery

point. Notices under Article 7 (Service Levels) go to the contracting entity named in the recital and not to any Evergreen affiliate that may operate a site.

Evergreen and the Provider agree that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On the operative wording, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Washington is where Evergreen runs cold-chain warehousing operations across 5 sites, and the Service Level Schedule and Credit Ladder follows that footprint. Where Evergreen has raised a query the Provider has answered by reference to Article 10 (Change Control), and the exchange is on the contract file.

Evergreen acknowledges that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Intended effect: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Evergreen treats the obligation as a site-level matter across its 5 sites in Washington, consistent with the Service Level Schedule and Credit Ladder. Evergreen has taken the point up once since signature; the correspondence is filed against Article 16 (Term and Termination) and did not result in an amendment.

8. Indemnities and limitation of liability

The Provider warrants to Evergreen that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. By design, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. For Evergreen, a cold-chain warehousing operator running 5 sites out of Washington, the point matters because the Service Level Schedule and Credit Ladder is administered site by site. Administration of this obligation for Evergreen sits with the account team rather than with central contracts, and Article 18 (Assignment) is where it is evidenced.

Evergreen acknowledges that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Materially, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. This bites at Evergreen's 5 sites, since a cold-chain warehousing operator administers the Service Level Schedule and Credit Ladder where the units work. Notices under Article 6 (Fees and Payment) go to the contracting entity named in the recital and not to any Evergreen affiliate that may operate a site.

Except as Article 14 (Indemnities) permits, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As between them, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Running 5 sites in cold-chain warehousing, Evergreen takes this obligation at site level rather than centrally under the Service Level Schedule and Credit Ladder. Where Evergreen has raised a query the Provider has answered by reference to Article 7 (Service Levels), and the exchange is on the contract file.

Evergreen pays the fees under Exhibit A in consideration of the Provider's undertaking that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Practically, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Operating 5 sites, Evergreen applies the Service Level Schedule and Credit Ladder at the point of delivery, as cold-chain warehousing practice requires. Where Evergreen has raised a query the Provider has answered by reference to Article 15 (Limitation of Liability), and the exchange is on the contract file.

Evergreen service level schedule - Schedule 2 - Sites and Operating Patterns

Evergreen site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
EVE-S001	Dunbar facility	39	2025-09-17	two shifts	shared	accepted with punch list
EVE-S002	Dayton facility	38	2024-03-06	single shift	Provider furnished	pending acceptance
EVE-S003	Juniper facility	24	2024-10-02	single shift	Customer furnished	accepted with punch list
EVE-S004	Keystone facility	37	2025-10-01	single shift	Customer	accepted

Evergreen site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
					furnished	
EVE-S005	Meridian facility	24	2026-12-25	two shifts	Provider furnished	pending acceptance
EVE-S006	Dunbar facility	19	2025-09-15	single shift	shared	not commenced
EVE-S007	Keystone facility	34	2025-12-28	continuous	Provider furnished	not commenced
EVE-S008	Juniper facility	7	2025-01-19	continuous	Customer furnished	accepted with punch list
EVE-S009	Juniper facility	29	2025-11-13	single shift	shared	not commenced
EVE-S010	Evergreen facility	15	2026-09-12	continuous	Provider furnished	accepted with punch list
EVE-S011	Fathom facility	16	2026-08-10	two shifts	shared	accepted
EVE-S012	Mesa facility	26	2026-09-21	continuous	Provider furnished	not commenced
EVE-S013	Larkspur facility	18	2024-03-09	continuous	shared	accepted with punch list
EVE-S014	Keystone facility	20	2025-04-11	two shifts	Provider furnished	not commenced
EVE-S015	Larkspur facility	21	2025-11-08	single shift	Customer furnished	accepted with punch list
EVE-S016	Harborline facility	13	2024-04-18	two shifts	Provider furnished	accepted
EVE-S017	Fathom facility	33	2025-09-24	two shifts	Provider furnished	accepted
EVE-S018	Evergreen facility	14	2025-07-03	continuous	Provider furnished	accepted with punch list
EVE-S019	Granite facility	10	2025-01-09	continuous	shared	not commenced
EVE-S020	Mesa facility	28	2026-09-25	continuous	Provider furnished	accepted
EVE-S021	Dayton facility	9	2024-08-19	single shift	Customer furnished	not commenced
EVE-S022	Harborline facility	22	2026-10-12	two shifts	shared	accepted
EVE-S023	Larkspur facility	30	2024-12-20	two shifts	shared	not commenced
EVE-S024	Granite facility	14	2024-12-13	single shift	Customer furnished	pending acceptance
EVE-S025	Keystone facility	15	2026-02-23	continuous	Provider furnished	accepted
EVE-S026	Meridian facility	37	2025-12-10	single shift	shared	accepted
EVE-S027	Harborline facility	36	2025-10-01	continuous	Provider furnished	accepted with punch list
EVE-S028	Dunbar facility	20	2025-08-07	single shift	shared	accepted
EVE-S029	Keystone facility	12	2025-12-08	single shift	Customer furnished	pending acceptance
EVE-S030	Dunbar facility	35	2025-04-10	two shifts	Provider furnished	pending acceptance
EVE-S031	Granite facility	33	2024-05-03	single shift	Provider furnished	not commenced
EVE-S032	Harborline facility	38	2024-10-01	single shift	Customer furnished	pending acceptance
EVE-S033	Evergreen facility	39	2026-04-17	two shifts	Provider furnished	accepted with punch list
EVE-S034	Harborline facility	29	2024-02-03	single shift	Provider furnished	not commenced
EVE-S035	Juniper facility	36	2024-01-01	two shifts	Provider furnished	accepted with punch list
EVE-S036	Dayton facility	16	2025-04-04	continuous	Customer furnished	not commenced
EVE-S037	Mesa facility	27	2026-05-21	single shift	Customer furnished	accepted with punch list
EVE-S038	Dayton facility	38	2025-02-02	continuous	shared	accepted
EVE-S039	Harborline facility	5	2025-04-23	two shifts	Provider furnished	pending acceptance
EVE-S040	Granite facility	15	2024-03-01	single shift	Provider furnished	accepted with punch list
EVE-S041	Dunbar facility	31	2024-10-19	continuous	Provider furnished	pending acceptance
EVE-S042	Evergreen facility	31	2024-07-25	continuous	shared	accepted
EVE-S043	Granite facility	11	2026-11-19	two shifts	shared	accepted

Evergreen site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
EVE-S044	Meridian facility	13	2025-10-22	single shift	Provider furnished	pending acceptance
EVE-S045	Granite facility	19	2024-12-09	two shifts	Provider furnished	not commenced
EVE-S046	Juniper facility	32	2025-01-02	continuous	Customer furnished	accepted with punch list
EVE-S047	Harborline facility	12	2024-07-10	single shift	Customer furnished	accepted with punch list
EVE-S048	Juniper facility	7	2025-02-22	single shift	Customer furnished	pending acceptance
EVE-S049	Dayton facility	21	2024-01-26	continuous	Provider furnished	not commenced
EVE-S050	Fathom facility	20	2025-03-18	continuous	Provider furnished	pending acceptance
EVE-S051	Meridian facility	10	2026-10-03	continuous	shared	pending acceptance
EVE-S052	Juniper facility	16	2026-08-17	continuous	Provider furnished	accepted
EVE-S053	Fathom facility	36	2025-11-12	single shift	shared	accepted with punch list
EVE-S054	Dayton facility	5	2024-02-11	two shifts	shared	accepted
EVE-S055	Juniper facility	13	2026-01-20	single shift	Provider furnished	accepted
EVE-S056	Crestline facility	14	2024-06-27	single shift	Customer furnished	accepted
EVE-S057	Juniper facility	8	2025-12-12	two shifts	Customer furnished	accepted
EVE-S058	Juniper facility	33	2025-12-07	two shifts	Customer furnished	pending acceptance
EVE-S059	Juniper facility	29	2025-11-26	two shifts	Customer furnished	accepted
EVE-S060	Keystone facility	23	2025-04-17	two shifts	shared	not commenced
EVE-S061	Dayton facility	14	2025-04-23	continuous	shared	accepted
EVE-S062	Keystone facility	39	2025-10-18	two shifts	Customer furnished	accepted with punch list
EVE-S063	Fathom facility	10	2026-08-01	continuous	shared	pending acceptance
EVE-S064	Dayton facility	8	2026-06-23	single shift	Customer furnished	accepted with punch list
EVE-S065	Dunbar facility	25	2025-08-08	continuous	shared	not commenced
EVE-S066	Juniper facility	28	2026-10-22	continuous	shared	pending acceptance
EVE-S067	Larkspur facility	16	2026-01-16	single shift	shared	not commenced
EVE-S068	Fathom facility	16	2026-12-20	two shifts	shared	not commenced
EVE-S069	Dayton facility	7	2025-08-11	single shift	Provider furnished	pending acceptance
EVE-S070	Harborline facility	19	2024-01-17	single shift	shared	pending acceptance
EVE-S071	Meridian facility	26	2024-02-12	two shifts	Customer furnished	not commenced
EVE-S072	Juniper facility	4	2025-11-28	two shifts	shared	pending acceptance
EVE-S073	Fathom facility	16	2026-12-16	single shift	Provider furnished	accepted with punch list
EVE-S074	Keystone facility	38	2024-01-13	single shift	Customer furnished	accepted with punch list
EVE-S075	Fathom facility	28	2026-11-14	single shift	Provider furnished	accepted
EVE-S076	Granite facility	30	2025-07-08	single shift	Provider furnished	not commenced
EVE-S077	Juniper facility	28	2024-10-06	continuous	Provider furnished	accepted
EVE-S078	Granite facility	27	2026-08-06	continuous	shared	accepted with punch list
EVE-S079	Harborline facility	25	2024-10-04	two shifts	shared	pending acceptance
EVE-S080	Juniper facility	39	2024-05-25	two shifts	shared	accepted with punch list
EVE-S081	Harborline	8	2025-04-10	continuous	Provider	not commenced

Evergreen site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
	facility				furnished	
EVE-S082	Evergreen facility	28	2024-02-04	single shift	shared	accepted with punch list
EVE-S083	Mesa facility	21	2026-02-26	two shifts	Provider furnished	accepted with punch list
EVE-S084	Dunbar facility	38	2025-04-23	two shifts	Provider furnished	not commenced

9. Term, termination and transition

As between Evergreen and the Provider, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Practically, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. This bites at Evergreen's 5 sites, since a cold-chain warehousing operator administers the Service Level Schedule and Credit Ladder where the units work. The Evergreen relationship is managed against Article 19 (Confidentiality) at each quarterly review, and any variance is minuted there rather than in the Order.

Evergreen retains the right, notwithstanding Article 8 (Acceptance), to require that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Tighter here than standard: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. For Evergreen, a cold-chain warehousing operator running 5 sites out of Washington, the point matters because the Service Level Schedule and Credit Ladder is administered site by site. Because Evergreen operates in cold-chain warehousing, the practical burden of this clause falls on its Washington operation, and Article 17 (Transition Assistance) governs how it is measured.

The parties have recorded in Exhibit B that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. On timing, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Evergreen runs 5 sites from Washington in cold-chain warehousing, so the Service Level Schedule and Credit Ladder is administered locally and this clause is applied per site. The Evergreen relationship is managed against Article 19 (Confidentiality) at each quarterly review, and any variance is minuted there rather than in the Order.

The Provider has undertaken to Evergreen that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As drafted, performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Evergreen, a cold-chain warehousing operator running 5 sites out of Washington, the point matters because the Service Level Schedule and Credit Ladder is administered site by site. Evergreen has taken the point up once since signature; the correspondence is filed against Article 6 (Fees and Payment) and did not result in an amendment.

10. Assignment, notices and general

Article 7.6 of this instrument records a departure from the Provider's standard position: three consecutive months below the availability commitment, or any four months below it in a rolling twelve, entitle the Customer to terminate the affected Order without charge and to recover unamortised implementation fees. The provision was negotiated at signature and is not qualified elsewhere in the Service Level Schedule and Credit Ladder; a reader reconciling this instrument against the Provider's standard terms should treat Article 7.6 as governing.

The Provider warrants to Evergreen that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. On any reading, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Site count matters here: Evergreen has 5 sites, and the Service Level Schedule and Credit Ladder treats each as a separate delivery point. The Evergreen file records the position as at the last amendment, and Article 19 (Confidentiality) is the reference a reviewer should cite when raising it.

Neither Evergreen nor the Provider may treat Article 6 (Fees and Payment) as permitting the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Textually, an estoppel does not arise from the Customer's forbearance, and a

waiver is effective only in writing signed by an authorised officer. In cold-chain warehousing the burden of this sits with operations, and Evergreen discharges it across 5 sites under the Service Level Schedule and Credit Ladder. Nothing in the Evergreen negotiation history qualifies Article 18 (Assignment), and a reviewer should not read the pre-signature drafts as doing so.

Evergreen retains the right, notwithstanding Article 17 (Transition Assistance), to require that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On the face of the clause, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Running 5 sites in cold-chain warehousing, Evergreen takes this obligation at site level rather than centrally under the Service Level Schedule and Credit Ladder. Where Evergreen has raised a query the Provider has answered by reference to Article 2 (Definitions), and the exchange is on the contract file.

Neither Evergreen nor the Provider may treat Article 12 (Intellectual Property) as permitting the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On timing, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. The Service Level Schedule and Credit Ladder reaches each of Evergreen's 5 sites separately, which is how a cold-chain warehousing operator in Washington administers it. For a customer of Evergreen's size the clause is unremarkable, but Article 3 (Scope of Supply) is drafted more tightly here than in the Provider's standard form.